

M/S Mohan Ice Chiller v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 20 August 2019 · WRIT - C No. 25746 of 2019 · **Writ disposed; liberty to seek Clause 6.14 instalments from Executive Engineer.**

HEADNOTE

A consumer seeking time or instalments to pay electricity arrears (and disconnection) must apply to the Executive Engineer under Clause 6.14 of the U.P. Electricity Supply Code, 2005. The High Court disposed of the writ with liberty to apply within two weeks, directing the Executive Engineer to consider the request in accordance with law and to fix instalments if necessary.

FACTUAL SUMMARY

The petitioner, M/S Mohan Ice Chiller, challenged a demand notice dated 6 May 2019 for electricity arrears of Rs.10,54,335. It told the Court that it wished to have the supply disconnected and was ready to clear the entire outstanding if given reasonable time or if the dues were spread in instalments. Counsel for the distribution licensee (respondent No. 4) appeared. The petitioner did not press a merits challenge to the demand itself.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.14

instalments for outstanding electricity dues

HOLDING

A consumer who seeks instalments to clear outstanding electricity dues has a remedy before the Executive Engineer under Clause 6.14 of the U.P. Electricity Supply Code, 2005. The writ is disposed of with liberty to approach the Executive Engineer within two weeks; the Executive Engineer shall consider the request in accordance with law and fix instalments if necessary. ¶ 4-5

PRINCIPLE TAGS

installment-payment-clause-6.14 A consumer seeking time or instalments to pay electricity arrears (and disconnection) must apply to the Executive Engineer under Clause 6.14 of the U.P. Electricity Supply Code, 2005.. ¶ 4-5

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — VALIDITY OF THE DEMAND OF RS.10,54,335 DATED 06.05.2019

Not examined on merits; the petitioner sought time or instalments to pay. ¶ 2-3

NOT DECIDED — WHETHER INSTALMENTS MUST IN FACT BE GRANTED

Left to the Executive Engineer under Clause 6.14, to fix instalments if necessary. ¶ 5